

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 28, 2026, AT 8:30 A.M.

Here, defendants' motion is not accompanied by a copy of the answer or other responsive pleading.

Nonetheless, the court, on its own motion, sets aside the default entered against defendants on April 8, 2026, because there is insufficient evidence that plaintiffs served the court's order denying defendants' motion to quash such that defendants time to plead had not expired. (Code Civ. Proc., § 418.10, subds. (b)–(c).)

Defendants shall file a responsive pleading on or before **June 4, 2026**.

4. S-CV-0049068 VAZQUEZ, GEOVANNI v. CALCARE

Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement

All moving papers must be served at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) This timeline is extended by 2 court days where, as here, service is accomplished through e-mail. (*Id.* at § 1010.6, subd. (a)(3)(B).)

Here, the deadline to file and serve plaintiff's motion by e-mail was May 1, 2026. However, plaintiff filed and served their motion by e-mail on May 8, 2026, which renders it untimely. Accordingly, plaintiff's motion is denied without prejudice.

5. S-CV-0052034 ORTIZ, MICHAEL v. CITY OF LINCOLN

The motion to tax costs is continued to **June 4, 2026, at 8:30 a.m. in Department 3**.

6. S-CV-0053126 HUSSAIN, SYED v. RAMIREZ, ISIDRO

The motion to compel second IME of plaintiff and motion for leave to file an amended complaint are continued to **June 4, 2026, at 8:30 a.m. in Department 3**.

///